

		to plead any facts with sufficient particularity to support a cause of action under Section 815.2, 815.4, 820(a), 840.2. Accordingly, the demurrer is sustained as to the second and third causes of action. <u>Motion to Strike</u> Defendant State of California's Motion to Strike Portions of the First Amended Complaint (FAC) is GRANTED in part and DENIED in part. Defendant's request to strike a portion of Paragraph 27 is denied as moot. Defendant's request to strike Plaintiff's request for prejudgment interest, injunctive relief pursuant to Civil Code section 51, and attorney's fees pursuant to Civil Code sections 52 and 54.1 are granted. Government entities are immune from prejudgment interest. (Civ. Code, § 3291.) Relief pursuant to Civil Code section 51, 52, and 54.1 must be supported by a cause of action for disability discrimination under the Unruh Act.
3	Doe #1 J.H. v. Roe 1 2022-01299923 Motion to be relieved as counsel of record	The motion of attorney James West of Marc J. Bern & Partners, LLP, to withdraw as attorney of record for Plaintiff John Doe #1 J.H. is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.
4	Electrolurgy Inc. v. TRM Gamma Aerospace Acquisition LLC 2025-01515908 Motion to be relieved as counsel of record	The motion of attorney Mikle S. Jew and John P. Riley to withdraw as attorney of record for Defendant TRM Gamma Aerospace Acquisition, LLC is GRANTED. (Code Civ. Proc. § 284, Cal. Rules of Court, rule 3.1362.) Attorneys will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorneys are to give notice.
5	McCrea v. Riemann 2024-01417305 Motion to be relieved as counsel as to D 520 Arbitrage Fund, LP; as to Def, 520 Arbitrage Fund LLC; as counsel as to Def, 520 Capital LLC; as to Def. 520 Capital LP; as Counsel	The motion of attorney Stanley M. Gordon to withdraw as attorney of record for Defendants 520 Arbitrage Fund, LP; 520 Arbitrage LLC; 520 Capital, LLC; 520 Capital LP; and 520 Capital Fund 2 LP is DENIED. Mr. Gordon has not filed mandatory forms Declaration in Support of Attorney's Motion to Be Relieved as Counsel--Civil (form MC-052) and Order Granting Attorney's Motion to Be Relieved as Counsel--Civil (form MC-053). In addition, Mr. Gordon has not established good cause for counsel to withdraw. To the extent the law firm Gordon & Reynolds

	as to Def 520 Capital Fund 2, LLP	seeks to withdraw as well, the motion does not identify the law firm.
7	Manighalam v. Eidemiller 2023-01342618 Motion for Judgment on the Pleadings 1st Amended Complaint	Defendants Exp Realty of California, Inc. and Manuel Dominguez move for judgment on the pleadings as to the first, second, and third causes of action in Plaintiffs' first amended complaint. Defendants Exp Realty of California, Inc. and Manuel Dominguez's Motion for Judgment on the pleadings is DENIED. First cause of action - Fraud "The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638. A seller's broker and agent owe a statutory duty to the buyer of the residential property to conduct a reasonably competent and diligent visual inspection of the property and disclose all facts materially affecting the value or desirability of the property that an inspection would reveal. (<i>Leko v. Cornerstone Building Inspection Service</i> (2001) 86 Cal.App.4th 1109, 1115-1116 (citing Civ. Code, §§ 2079, subd. (a), 2079.16; see also Civ. Code, § 1106).) " A selling broker has no obligation to purchasers to investigate public records or permits pertaining to title or use of the property." (<i>Field v. Century 21 Klowden-Forness Realty</i> (1998) 63 Cal.App.4th 18, 24 (citing Civ. Code, § 2079.3).) While Plaintiffs allege the BBQ structure and its components were visible during the inspection period, they do not allege how the alleged defects with the <i>functionality</i> of the BBQ, including its leaking gas line and the fact its electric line and outlet and gas burner were not working were visible such that they would have been identified during Defendants' "reasonably competent and diligent visual inspection." With respect to the issue of smoke, Defendants contend their inspection was limited to the interior of the property. Plaintiffs allege, however, "there was constant smoke from the next-door neighbor into the Property." (FAC ¶ 15 [emphasis added].) While Defendants further contend this issue was not observable upon a visual inspection of the property (Mtn. at 19:28-20:2), Plaintiffs allege the "constant smoke from the neighbor's property [was] visually detectable during their inspection of the Property." (FAC ¶ 29.)